

ATPL EASA STUDY GUIDE | 010 - AIR LAW

Chapter 25: Accident Investigation (Annex 13)

Syllabus Source: CAE Oxford (pp. 493-506) | Pass Target: >= 90% AviationExam

1. ACCIDENT VS SERIOUS INCIDENT VS INCIDENT (ANNEX 13)

[*] OFFICIAL DEFINITION - Definition of an Accident

An occurrence associated with the operation of an aircraft between the time any person boards with the intention of flight until such time as all persons have disembarked, in which: 1. A person is FATALLY or SERIOUSLY INJURED (except self-inflicted, natural causes, or stowaways); 2. The aircraft sustains DAMAGE OR STRUCTURAL FAILURE adversely affecting strength, performance, or flight characteristics, requiring major repair; OR 3. The aircraft is MISSING or completely inaccessible.

- Fatal Injury: An injury resulting in death within 30 DAYS of the date of the accident.
- Serious Injury: An injury requiring hospitalization > 48 hours within 7 days; fracture of bone (except simple fingers/toes/nose); lacerations causing severe hemorrhage; internal organ damage; or 2nd/3rd degree burns over > 5% of body surface.
- Serious Incident: An incident involving circumstances indicating that there was a high probability of an accident (e.g. near collision requiring evasive maneuver, landing on taxiway, uncontained engine failure).

2. SOLE OBJECTIVE OF INVESTIGATION (ABSOLUTE EXAM CORE)

[!] EXAM TRAP (AVIATIONEXAM) - Sole Objective: Prevention of Accidents (NOT Blame)

The sole objective of the investigation of an accident or incident under Annex 13 shall be the PREVENTION of accidents and incidents. It is explicitly NOT the purpose of this activity to apportion blame or liability.

3. STATE RESPONSIBILITIES & PROTECTION OF RECORDS

- Investigation Responsibility: The State of OCCURRENCE institutes the inquiry.
- Accredited Representatives: State of Registry, State of Operator, State of Design, and State of Manufacture are entitled to appoint an Accredited Representative.
- Non-Disclosure of Records: Cockpit voice recordings (CVR), witness statements, and personal medical information must NOT be made available for purposes other than accident investigation (e.g. criminal liability).
- Final Report Target: The State conducting investigation shall release Final Report as soon as possible, ideally within 12 MONTHS.

4. FLIGHT DATA & COCKPIT VOICE RECORDERS (PRESERVATION)

- Flight Data Recorder (FDR): Must record parameters for at least the preceding 25 HOURS of operation.
- Cockpit Voice Recorder (CVR): Must retain information recorded during at least the last 2 HOURS (increased to 25 hours for newly manufactured large aeroplanes).
- In the event of an accident or serious incident, the operator must PRESERVE all original recorded data without erasure.

5. MANDATORY OCCURRENCE REPORTING (EU NO 376/2014)

Under Regulation (EU) No 376/2014, any occurrence which may represent a significant risk to aviation safety must be reported by the flight crew, operator, or ATS provider to the competent authority within 72 HOURS of becoming aware of the occurrence.

6. AVIATIONEXAM PRACTICE QUESTIONS (WITH EXPLANATIONS)

Q1: What is the sole objective of an aircraft accident investigation under ICAO Annex 13?

- [A]: To determine who is legally liable
- [B]: The prevention of accidents and incidents
- [C]: To assist insurance claims settlement
- [D]: To penalize regulatory violations

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [B]. The sole objective under Annex 13 is explicitly the prevention of accidents and incidents, NOT to apportion blame or liability.

Q2: Under Annex 13, a fatal injury is defined as an injury resulting in death within how many days?

- [A]: 7 days
- [B]: 14 days
- [C]: 30 days
- [D]: 60 days

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [C]. A fatal injury is one resulting in death within 30 days of the accident.

Q3: Are Cockpit Voice Recorder (CVR) recordings allowed to be used for criminal prosecution of the crew?

- [A]: Yes, without restriction
- [B]: NO, CVR recordings are strictly protected from disclosure for non-investigative purposes
- [C]: Only if requested by the airline
- [D]: Only in fatal accidents

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [B]. Annex 13 strictly protects CVR recordings from disclosure for purposes other than accident investigation.

Q4: What is the minimum recording duration of a Flight Data Recorder (FDR) on commercial air transport aeroplanes?

- [A]: 2 hours
- [B]: 10 hours
- [C]: 25 hours
- [D]: 60 days

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [C]. Under ICAO Annex 6 and Part-CAT, modern FDRs must retain data for at least 25 hours.

Q5: Under Regulation (EU) No 376/2014, within how many hours must a mandatory safety occurrence report be

- [A]: 24 hours
- [B]: 48 hours
- [C]: 72 hours
- [D]: 7 days

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [C]. Mandatory safety occurrences must be reported within 72 hours of becoming aware of the occurrence.

Q6: Which State has the primary responsibility to institute and conduct an aircraft accident investigation under

- [A]: The State of Registry
- [B]: The State of the Operator
- [C]: The State of Occurrence
- [D]: The State of Manufacture

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [C]. Under Annex 13, the State of Occurrence is responsible for instituting and conducting the investigation.